

26STCP00626 26STCP00626

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCP00626 Hearing Date: July 22, 2026 Dept: 833

Rita Jenkins Case No. 26STCP00626

v.

Hearing:

July 22, 2026

Location:

Stanley Mosk Courthouse

Department:

833 Jennifer Troia and Judge: Joseph Lipner

California

Department of Social Services

[Tentative] Order Sustaining

Demurrer to Petition for Writ of Mandate

Respondents Jennifer Troia, in her

official capacity as Director of California Department of Social Services and

California Department of Social Services ("Respondents") demur to Petitioner

Rita Jenkins ("Petitioner")'s First Amended Petition ("FAP").

The

Court SUSTAINS the demurrer to the petition with LEAVE TO AMEND. Petitioner

shall amend within 20 days.

BACKGROUND

The First Amended Petition alleges

that Petitioner had cared for her disabled great-niece for over a decade, while receiving only a fraction of the State funding that her great-niece was entitled to. (FAP, ¶ 1.)

Petitioner planned to adopt her

great-niece, but this process was interrupted by criminal charges brought against Petitioner in May 2020, which have since been dismissed. (FAP, ¶ 2.)

As a result of the criminal charges,

Petitioner's great-niece was removed from Petitioner's care for a period of time and Ms. Jenkins's approval of her Resource Family Approval (RFA) was rescinded. (FAP, ¶¶ 45-46.) Upon Petitioner's great-niece returning to Petitioner's home, the RFA rescission prevented Petitioner from accessing funding to support her great-niece. (FAP, ¶¶ 47, 54.) Petitioner filed an appeal to contest this rescission ("the other administrative matter"), and it is unclear why this appeal never moved forward. (FAP, ¶ 56.)

Petitioner was allowed access to

funding from November 15, 2022-February 29, 2024. (FAP, ¶ 57.) In late March 2024, the Department of Children and Family Services ("DCFS") issued a Notice of Action to terminate Petitioner's funding again. (FAP, ¶ 57.) Petitioner contacted various agents of DCFS, including her great-niece's social worker, their supervisor, and the Eligibility Worker listed on the Notice of Action and was told that she was not entitled to a fair hearing. (FAP, ¶ 57.)

To contest the termination of

funding, Petitioner "filed a request for a state administrative hearing. (FAP, ¶ 59.) Petitioner sought retroactive benefits at the Dual Agency Rate with the Full Supplement Aid for any missing months from July 23, 2020 and ongoing and prospective state foster care, Approved Relative Caretaker ("ARC") funding, and Adoption Assistance Program ("AAP") funding. (FAP, ¶ 19.) This request was separate from the appeal filed in the other administrative matter (see above). The Administrative Law Judge ruled against Petitioner and denied her request for funding from various state programs. (FAP, ¶ 62.)

Petitioner has raised causes of

action for (1) writ of administrative mandate under Code of Civil Procedure § 1094.5 and Welfare & Institutions Code § 10962; and (2) writ of mandate

under Code of Civil Procedure § 1085.

LEGAL STANDARD

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc. § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State* (2008) 161 Cal.App.4th 242, 247.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of Petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) “A demurrer must dispose of an entire cause of action to be sustained.” (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

DISCUSSION

A.

Claim

under Code of Civil Procedure Section 1094.5

Respondents

argue that the claim for administrative mandamus under Code of Civil Procedure Section 1094.5 is not ripe because there is a pending appeal in the other administrative matter, and that appeal might impact the present claims.

“[J]udicial intervention is premature until the administrative agency has rendered a final decision on the merits. Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings.” (*Edgren v. Regents of University of California* (1984) 158 Cal.App.3d 515, 520.)

Here, Petitioner has pled that she filed an appeal to contest her RFA rescission in 2020 in the other administrative manner. (FAP, ¶ 56.) Petitioner does not plead that this appeal has been resolved.

In the present case, Petitioner seeks retroactive funding at the Dual Agency Rate with the full Supplemental Rate from July 23, 2020. (FAP, ¶ 80.) Because Petitioner seeks retroactive funding from July 2020, the outcome of the appeal of the RFA rescission in 2020 may directly impact her eligibility for funding during at least a period of time for which Petitioner is requesting retroactive funding in the current case.

The outcome of the appeal in the other administrative matter may directly impact this case. For example, if the appeal in the other administrative matter results in a reversal of the rescission, Petitioner could be eligible for retroactive funding during at least a period of time for which she requests relief in this action. If the appeal upholds the rescission, Petitioner may not be able to access certain funding, such as state foster care funding or the ARC program. (Welf. & Inst. Code § 11402, subd. (b); § 11461.3.)

The RFA appeal should be resolved to determine the exact relief Petitioner is entitled to receive in this action.

Therefore, the Court SUSTAINS the demurrer to the first claim.

B.

Claim under Code of Civil Procedure Section 1085

A court may issue a writ of traditional mandamus to “enforce a mandatory and ministerial duty to act on the part of an administrative agency or its officer.” (The H.N. & Frances C. Berger Foundation v. Perez (2013) 218 Cal.App.4th 37, 46 [internal citations removed].) “A ministerial act is one that a public functionary is required to perform in a prescribed manner in obedience to the mandate of legal authority, without regard to his or her own judgment or opinion concerning the propriety of such act.” (Ellena v. Department of Ins. (2014) 230 Cal.App.4th 198, 205 (Ellena).) “In order to construe a statute as imposing a mandatory duty, the mandatory nature of the duty must be phrased in explicit and forceful language.” (Quackenbush v. Superior Court (1997) 57 Cal.App.4th 660, 663.) A Section 1085 claim must also plead “a clear, present, and beneficial right in the petitioner to the performance of that duty.” (Ellena, supra, 230 Cal.App.4th at p. 205.)

Here,

the petition alleges two bases for the traditional mandamus claim: 1) Respondents' alleged "consistent failure to...consider actual blood relatives of dependents as 'relatives' for purposes of determining eligibility for ARC funding where there has been a termination of... parental rights...."; and 2) Respondents' alleged "systemic failure to advise individuals like [petitioner] of their funding eligibility...." as required under Welfare and Institutions Code section 10500. (FAP, ¶¶ 87, 88.)

The

first bases for the traditional mandamus claim fails because Petitioner does not identify any statute that imposes a mandatory duty regarding the obligation to consider blood relatives of dependents as "relatives" after termination of parental rights for purposes of funding eligibility. Additionally, existing law permits ARC funding for relatives whose RFA is denied, not rescinded. (Welf. & Inst. Code, § 11461.3, subd. (l).) There is no allegation in the FAP that Petitioner's RFA was denied.

Welfare

and Institutions Code Section 10500 provides:

Every person administering aid under any public assistance program shall conduct himself with courtesy, consideration, and respect toward applicants for and recipients of aid under that program, and shall endeavor at all times to perform his duties in such manner as to secure for every person the amount of aid to which he is entitled, without attempting to elicit any information not necessary to carry out the provisions of law applicable to the program, and without comment or criticism of any fact concerning applicants or recipients not directly related to the administration of the program.

The

statute directs the behavior of individuals administering aid under a public assistance program rather than directing individuals to perform a particular act in a prescribed manner. Therefore, there is no mandatory duty created by this statute.

Even

if one could interpret this statute as creating a mandatory duty, the duty would be placed on counties as the statute is directed to those administering

aid, and it is the counties, not Respondents, that are delegated the sole responsibility to administer the child welfare program. (Welf. & Inst. Code §§ 10800, 16500.) Petitioner concedes this fact in her petition when she states “. . . Welfare and Institutions Code section 10500, which requires agencies like DCFS to perform administrative duties....” (FAP, ¶ 88.) DCFS is a county agency.

Petitioner

has also not pled how there is a clear, present and beneficial right in the petitioner to the performance of the duty.

Petitioner's citation to *Timmons v. McMahon* (1991) 235 Cal.App.3d 512 appears to be inapposite as *Timmons* involved a purely legal interpretation of “eligibility requirement” which could be challenged on the basis of traditional mandamus. (Id. at p. 517.) There was a simple question at issue in *Timmons*: whether temporary guardians are eligible for benefits. (Id. at p. 514.) At least based on the allegations of the current pleading, Petitioner does not specify a similar eligibility requirement or other mandatory duty.

Finally,

Petitioner brings up Welfare & Institutions Code §§ 10600 and 10553 in the opposition. While both statutes concern Respondents, neither statute creates any kind of mandatory duty. Petitioner cannot compel Respondents to exercise their discretion in a particular manner.

Therefore,

the Court SUSTAINS the demurrer to the second claim. Petitioner, however, will be given the opportunity to amend to clarify or assert how some mandatory legal obligation applies here. Petitioner may also attempt to demonstrate how administrative remedies have allegedly been exhausted, the issue discussed earlier in this order.

CONCLUSION

The Court SUSTAINS the demurrer to the petition. Petitioner shall amend within 20 days.

IT IS SO ORDERED.

Dated: July 22,
2026

Joseph

Lipner

Superior

Court Judge